QP CODE: 24900152

MAHATMA GANDI UNIVERSITY, KOTTAYAM
FIRST SEMESTER MGU-UGP (HONOURS) REGULAR
EXAMINATION, NOVEMBER 2024
Discipline Specific Course – MG1DSCJMC101 - CONSTITUTIONAL LAW
(2024 Admission Onwards)

Time: 2 Hours Max. Marks : 70

Part A
Multiple Choice Questions
*Answer **all** questions. Each question carries **1** mark*

1. (b) To draft the constitution
2. (c) Article 9
3. (c) Article 21
4. (d) To pay taxes honestly
5. (c) To outline reasonable restrictions on freedom of speech and expression
6. (b) Non-justiciable
7. (a) Governor
8. (b) Seventh Schedule.
9. (a) 42nd Amendment.
10. (d)Mutual respect and coexistence

(10x1=10)

Part B
Short Answer Type Questions
*Answer any **ten** questions. Each question carries **3** marks*

11. The basic structure of the Constitution refers to the fundamental principles and framework that cannot be altered or amended by the Parliament. It includes features such as the supremacy of the constitution, separation of powers, federalism, secularism, and the protection of fundamental rights.
12. In dual citizenship, each person is a citizen of both country and state. But in single citizenship, a person has only the citizenship of the country; there is no separate state citizenship.
13. Article 32 empowers the Supreme Court of India and Article 226 allows the High Courts to issue appropriate writs for the enforcement of fundamental rights. Writ is an order of the court by which the court directs an individual official or an authority to do an act or abstinence.
14. The rights which are given to the citizens by way of fundamental rights are a guarantee against state action as distinguished from violation of such rights from private parties. Private action is sufficiently protected by the ordinary law of land.
15. Article 51-A of the Indian Constitution specifies a code of fundamental duties for citizens. They are statutory duties. Its main object is to remind every citizen that, while enforcing fundamental rights, he must also be conscious of his fundamental duties.
16. Freedom of speech and expression guaranteed under Article 19(1)(a) of the Constitution is not an absolute right.It is subject to the following restrictions contained in Article 19(2)such as,

(i) Security of the State (ii) Friendly relations with foreign states (iii) Public order (iv) Decency or Morality (v) Contempt of Court (vi) Incitement to an offence (vii) Integrity & sovereignty of India

17. The Directive Principles of State Policy contained in Part IV of the Constitution set out the aims and objectives to be taken up by the state in the governance of the country. It contains a list of socio- economic rights and freedoms which the state is expected to secure for the people through suitable legislative enactments.

18. High Court judges are appointed by the President of India in consultation with the Chief Justice of India and the Governor of the State concerned. Their term of office is up to 62 years. A judge may be removed from his office by the process of impeachment (before he attains the age of 62 yrs.). Qualifications: (i) Citizen of India (ii) Advocate for ten years in a High Court or held a judicial office for ten years.

19. Vice President is elected by an electoral college consisting of all the members of Rajya sabha and Lok sabha at a joint session by secret ballot. He is the ex-officio chairman of Rajya Sabha. He presides over the meetings of the Rajya sabha and whenever any vacancy occurs in the office of the President, he acts as President until a new President is elected.

20. The union list is a list of items given in the seventh schedule of the Constitution of India on which Parliament has exclusive power to legislate**.** State legislature is empowered to make laws with respect to those matters enumerated in the state list. Parliament is also permitted to make laws with respect to any matter in the state list if it is approved by the Rajya sabba by 2/3 majority in the interest of the nation.

21. Members of the legislature are entitled to immunity from arrest during the session of the legislature and also for 40 days before and after the session of the legislature in civil proceedings. However this privilege is not available in a criminal charge or contempt of court or preventive detention; Arrest must be informed to the presiding officer of the House.

22. Governor is the constitutional head of the state. The President, on receipt of a report from the Governor of the state or otherwise, satisfied that a situation has arisen in which the govt. of the state cannot be carried on in accordance with the provisions of the constitution; he may issue proclamation for the state emergency.

(10x3=30)

Part C

*Answer any **two** questions*
*Each question carries **15** marks*

23. i) The lengthiest Constitution in the World ii) Parliamentary form of Government iii) Unique blend of rigidity and flexibility iv) Fundamental rights v) Directive Principles of State Policy vi) Federation with strong centralizing tendency vii) Adult suffrage viii) Independent judiciary ix) Secular State x) Single citizenship xi) Fundamental duties.

24. Article 32 empowers the Supreme Court to issue appropriate writs for the enforcement of fundamental rights. Writ is an order of the court by which the court directs an individual official or an authority to do an act or abstinence. Types: (i) Habeas Corpus (ii) Mandamus (iii) Certiorari (iv) Prohibition (v) Quo warranto. Earlier, only persons whose fundamental rights are violated have the right to move to the court for the enforcement of their fundamental rights. Now, public interest litigation is permitted at the instance of public spirited citizens for the enforcement of constitutional and legal rights of others who because of their poverty or other reasons are unable to approach the court. Any member of the public can approach the court for enforcing the constitutional or legal right of other persons.

25. Freedom of speech and expression guaranteed under Article 19(1)(a) of the Constitution means the right to express one's own views, opinion, ideas etc. freely by words of mouth, writing, painting, pictures or any other mode. It connotes the liberty to propagate the views of other people. It implies the right to propagate or publish the views of others and thus the freedom of press is included in this expression. It includes freedom of circulation and propagation of ideas. But this right is not an absolute right. It is subject to the following restrictions contained in Article 19(2) of the Constitution, such as (i) Security of the state (ii) Friendly relations with foreign states (iii) Public order (iv) Decency or morality (v) Contempt of court (vi) Incitement to an offence (vii) Integrity & sovereignty of India.

26. Supreme Court is the highest court of appeal in India. Supreme Court entertains appeal from any judgement, decree or final order of the High Courts in civil, constitutional and criminal matters and also from any judgement, decree, sentence or order in any case made by any court or tribunal in India. It is the final interpreter and guardian of the Constitution.. Appellate Jurisdiction of the Court: (a) appeal in constitutional matters (b) appeal in civil cases (c) appeal in criminal cases (with and without a certificate from High Court) (iv) Appeal by special leave (Art. 136)

(2x15=30)